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Provision of November 14, 2024

Register of provisions

n. 697 of November 14, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, Regulation);

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the Code regarding the protection of personal data (hereinafter, Code);

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection of personal data, approved by Resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter, Guarantor Regulation No. 1/2019);

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

Reporting by Dr. Agostino Ghiglia;

PREMISED

1. Introduction.

In the context of a series of checks carried out ex officio by this Authority, a verification conducted on XX revealed that the Municipality of Torre Annunziata (hereinafter, Municipality) had not communicated the contact details of the Data Protection Officer (hereinafter, DPO) to the Authority – using the dedicated channel available at the page <https://servizi.gpdp.it/comunicazionerpd/s/> – as required by Article 37, paragraph 7, of the Regulation. A simultaneous check conducted on the Municipality's official website, however, confirmed the publication of the contact details of the DPO, which is also required by the same provision.

Therefore, with a note dated XX (prot. n. XX), the Office, based on the elements acquired and the checks carried out, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of measures referred to in Article 58, paragraph 2, of the Regulation, for failing to communicate the contact details of the DPO to the Authority, in violation of Article 37, paragraph 7, of the Regulation.

With a note sent on XX (prot. n. XX), the Municipality submitted its defense writings, in which it admitted the failure to communicate and provided a description of the context in which this violation occurred, as well as declared that it had “complied, even after the initiation of the procedure indicated above, with the obligation to communicate the DPO through the established contact channel, as a measure adopted to eliminate the violation” – the communication obligation was then effectively fulfilled on XX.

2. Outcome of the investigative activity.

Pursuant to Article 37 of the Regulation, the data controller (and the processor) “[designates] systematically a data protection officer whenever: a) the processing is carried out by a public authority or by a public body, except for judicial authorities when exercising their judicial functions” (paragraph 1, letter a)) and “publishes the contact details of the data protection officer and communicates them to the supervisory authority” (paragraph 7).

Furthermore, in the Guidelines on data protection officers (DPOs), adopted by the Article 29 Working Party on personal data protection on December 13, 2016, and amended on April 5, 2017, it is added that “Article 37, seventh paragraph, of the GDPR imposes on the controller or the processor to publish the contact details of the DPO, and to communicate the contact details of the DPO to the relevant supervisory authorities. These provisions aim to ensure that both the data subjects (inside or outside the entity/body acting as controller or processor) and the supervisory authorities can easily and directly contact the DPO without having to refer to another structure operating at the controller/processor” (paragraph 2.6).

The Guidance Document on the designation, position, and tasks of the Data Protection Officer (DPO) in the public sector, adopted by the Guarantor on April 29, 2021, with provision No. 186 (doc. web n. 9589104), specifies that “Regarding communication to the Authority, it is emphasized that the Guarantor has made available a specific online procedure not only for communication but also for the variation and revocation of the name of the designated DPO. This procedure represents the only contact channel that can be used for this specific

purpose and is available at the page <https://servizi.gdpd.it/comunicazionerpd/s/>, where

the appropriate instructions and related FAQs are also provided: moreover, attention is drawn to

entities to

correctly enter the required data, such as

the identification of the data controller (the entity

as a whole, and not the legal

representative) and the completion of the tax code

of the administration (and not the VAT number, or

of the tax code of another subject)" (par. 7).

In this case, since there has been a failure to communicate the contact details of the DPO to the Authority, the violation of art. 37, par. 7, of the Regulation is established.

In light of the above assessments, it is noted that the statements made by the Municipality during the investigation – for which the truthfulness may be subject to accountability pursuant to art. 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by art. 11 of the Regulation of the Guarantor no. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the violation of art. 37, par. 7, of the Regulation is noted due to the failure to communicate the contact details of the DPO to the Authority.

However, since the Municipality has proceeded to make the aforementioned communication following the initiation of the procedure by the Authority, the conditions for the adoption of corrective measures pursuant to art. 58, par. 2, of the Regulation do not exist.

3. Adoption of the injunction order for the application of the administrative pecuniary sanction (art. 58, par. 2, lett. i), and art. 83 of the Regulation; art. 166, comma 7, of the Code).

The Guarantor, pursuant to art. 58, par. 2, lett. i), and art. 83 of the Regulation, as well as art. 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to article 83, in

addition to [other] corrective measures [referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the College [of the

Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to

article 166, comma 7, of the Code" (art. 16, comma 1, of the Regulation of the Guarantor no. 1/2019).

In this regard, in the case at hand, the violation of the cited provision is subject to the application of the administrative pecuniary sanction provided for by art. 83, par. 4, of the Regulation.

The aforementioned administrative pecuniary sanction, imposed based on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation, in relation to which the following observations are made.

The failure to communicate the contact details of the DPO by the Municipality has negatively impacted the Authority's ability to contact the DPO easily and directly. On the other hand, it is noted that the Municipality has taken steps to remedy the violation and that there are no previous relevant violations committed by it or previous measures pursuant to art. 58 of the Regulation. The negligent nature of the violation is also noted.

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at €2,000 (two thousand) for the violation of art. 37, par. 7, of the Regulation as the administrative pecuniary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

It is also deemed appropriate to apply the accessory sanction of publication on the Guarantor's website of this provision, as provided for by art. 166, comma 7, of the Code and by art. 16 of the Regulation of the Guarantor no. 1/2019, given that it concerns the failure to comply with an obligation that has been mandatory for more than six years.

Finally, it is believed that the conditions of art. 17 of the Regulation of the Guarantor no. 1/2019 apply.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR

pursuant to art. 57, par. 1, lett. a), of the Regulation, declares the conduct of the Municipality of Torre Annunziata, described in the terms of the motivation, unlawful, consisting of the violation of art. 37, par. 7, of the Regulation;

ORDERS

the Municipality of Torre Annunziata, located at corso Vittorio Emanuele III n. 293, Torre Annunziata (NA) – CF 00581960630, pursuant to art. 58, par. 2, lett. i), and art. 83 of the Regulation, to pay the sum of €2,000 (two thousand) as an administrative pecuniary sanction for the violation indicated in the motivation;

COMMANDS

the Municipality of Torre Annunziata to pay the sum of €2,000 (two thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to art. 27 of Law no. 689/1981.

In this regard, it is reminded that the offender retains the right to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction, within 30 days from the date of notification of this provision, pursuant to art. 166, comma 8, of the Code (see also art. 10, comma 3, of Legislative Decree of September 1, 2011, no. 150);

DISPOSES

pursuant to art. 166, comma 7, of the Code and art. 16, comma 1, of the Regulation of the Guarantor no. 1/2019, the publication of the injunction order on the Guarantor's website;

pursuant to art. 154-bis, comma 3 of the Code and art. 37 of the Regulation of the Guarantor no. 1/2019, the publication of this provision on the Authority's website;

pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of violations and measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, Article 152 of the Code, and Article 10 of Legislative Decree 150/2011, against this provision it is possible to file an appeal before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of notification of the provision itself or within sixty days if the appellant resides abroad.

Rome, November 14, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei